

**SUPREME COURT
OF THE UNITED STATES**

IN THE SUPREME COURT OF THE UNITED STATES

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THE HAIN CELESTIAL GROUP, INC.,)
ET AL.,)
 Petitioners,)
 v.) No. 24-724
SARAH PALMQUIST, INDIVIDUALLY AND)
AS NEXT FRIEND OF E.P., A MINOR,)
ET AL.,)
 Respondents.)
- - - - -

Pages: 1 through 55
Place: Washington, D.C.
Date: November 4, 2025

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10 Respondents.)
11 - - - - -
12
13 Washington, D.C.
14 Tuesday, November 4, 2025
15
16 The above-entitled matter came on for
17 oral argument before the Supreme Court of the
18 United States at 10:41 a.m.
19
20 APPEARANCES:
21 SARAH E. HARRINGTON, ESQUIRE, Washington, D.C.; on
22 behalf of the Petitioners.
23 RUSSELL S. POST, ESQUIRE, Houston, Texas; on behalf
24 of the Respondents.
25

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1 P R O C E E D I N G S

2 (10:41 a.m.)

3 CHIEF JUSTICE ROBERTS: We'll hear
4 argument next in Case 24-724, The Hain
5 Celestial Group versus Palmquist.

6 Ms. Harrington.

7 ORAL ARGUMENT OF SARAH E. HARRINGTON
8 ON BEHALF OF THE PETITIONERS

9 MS. HARRINGTON: Thank you, Mr. Chief
10 Justice, and may it please the Court:

11 The Fifth Circuit erred in holding
12 that it was required to vacate the district
13 court's final judgment after determining that
14 Whole Foods should have been dismissed.

15 For nearly 200 years, this Court has
16 instructed that even if a federal court makes a
17 jurisdictional error at the inception of a
18 case, a final judgment in that case should
19 stand if the district court had jurisdiction
20 over the suit in the form it took at the time
21 of final judgment. That is exactly what
22 happened here because the only parties left
23 were completely diverse. Excuse me.

24 Plaintiff's primary argument is that
25 Whole Foods was a party in the district court

1 through trial into final judgment because the
2 order dismissing it could have been and
3 eventually was reversed on appeal.

4 But, if you accept that argument, that
5 would wipe out the fraudulent joinder doctrine
6 completely. In order to be a party in a suit,
7 you have to be subject to the district court's
8 jurisdiction. But, when a nominal defendant is
9 dismissed as fraudulently joined, that
10 defendant is never subject to the jurisdiction
11 of the federal court. The whole reason a
12 fraudulent joinder case is even removable in
13 the first place is because the fraudulently
14 joined defendant is not treated as a real
15 defendant.

16 So, if you view that dismissed
17 defendant as a party through final judgment
18 based on the possibility of reversal on appeal,
19 then there would never be jurisdiction in a
20 fraudulent joinder case because, even if the
21 dismissal was later determined to be correct,
22 the non-diverse defendant would have been
23 lurking through the whole case to final
24 judgment. Instead, when a defendant is
25 dismissed as fraudulently joined, it's as if

1 they never got in the door to the federal court
2 in the first place, and the case moves forward
3 as a suit between completely diverse parties.

4 Here, the Fifth Circuit's later
5 conclusion that the district court should not
6 have dismissed Whole Foods didn't retroactively
7 make Whole Foods a party all along. And
8 because the only parties to the final judgment
9 were completely diverse, many of this Court's
10 cases, including Caterpillar, instruct that
11 that final judgment should be preserved.

12 Finally, if this Court harbors doubts
13 that the district court had jurisdiction to
14 enter a final judgment, the decision in
15 Newman-Green makes clear that the final
16 judgment should be preserved by dismissing
17 Whole Foods now.

18 Either way, the Fifth Circuit's
19 decision should be vacated.

20 And I welcome the Court's questions.

21 JUSTICE THOMAS: Can you think of a
22 case where a jurisdictional defect was cured
23 non-consensually, that the court imposed a
24 dismissal rather than the party consenting --
25 the plaintiff consenting to it?

1 MS. HARRINGTON: Well, in Caterpillar,
2 the original plaintiff who objected to removal
3 was not a party to the -- to the settlement
4 that this Court found cured the jurisdictional
5 defect in that case.

6 But I'd like to, if I -- if I can,
7 just address the concept of curing a
8 jurisdictional defect. That is how this Court
9 has talked about it in cases like Caterpillar
10 and Newman-Green, and we picked up on that in
11 the briefing. But, when you're talking about
12 fraudulent joinder, it might not even be the
13 best framing because, when you're talking about
14 fraudulent joinder, there isn't an erroneous
15 assertion of jurisdiction ever in the way that
16 there was in cases like Caterpillar because the
17 non-diverse defendant is just treated as not a
18 real party to the case and there's never an
19 assertion of federal jurisdiction over the
20 claim against that non-diverse party.

21 And so, here, the question is, if you
22 should have remanded a case to -- to state
23 court and you didn't, but there was no
24 assertion of federal jurisdiction over claims
25 over which there was no jurisdiction, what do

1 you do? And when there's no prejudice --

2 JUSTICE SOTOMAYOR: But there is
3 inherent prejudice, and that's the thing that
4 you're ignoring, which is this plaintiff wanted
5 to be in state court. It sued two parties,
6 your client and Whole -- and Whole Foods.

7 MS. HARRINGTON: Right.

8 JUSTICE SOTOMAYOR: All right? It
9 wanted to litigate. It couldn't because
10 someone that it had a right to include, Whole
11 Foods, was dismissed erroneously. It was
12 deprived permanently of its opportunity,
13 tactical opportunity, to try this in state
14 court. Isn't that inherent prejudice?

15 MS. HARRINGTON: I don't think it is,
16 Justice Sotomayor.

17 JUSTICE SOTOMAYOR: Why?

18 MS. HARRINGTON: Well, so, first of
19 all, it has the right still to pursue its
20 claims against Whole Foods in state court.

21 JUSTICE SOTOMAYOR: No, but it's -- it
22 wanted to apportion liability between two whole
23 clients. Now it can't do that.

24 MS. HARRINGTON: Well, it can't do
25 that because it lost on the merits.

1 JUSTICE SOTOMAYOR: Well, but the
2 point is that it had a tactical advantage that
3 was erroneously deprived of.

4 MS. HARRINGTON: I don't think that's
5 right, Justice Sotomayor. Being able to sue in
6 state court isn't a tactical advantage.

7 JUSTICE SOTOMAYOR: Oh, absolutely. I
8 mean, we wouldn't have all the removal
9 arguments that we encounter if it wasn't.
10 Parties don't fight removal simply because they
11 want to. They see tactical advantages in
12 remaining in one forum versus another.

13 MS. HARRINGTON: Well, unless you're
14 going to formally adopt a rule that state
15 courts are always better for plaintiffs and
16 federal courts --

17 JUSTICE SOTOMAYOR: No. That's not
18 the point --

19 MS. HARRINGTON: -- are always better
20 for defendants --

21 JUSTICE SOTOMAYOR: No. The rule is
22 very simply this plaintiff filed in the forum
23 it wanted and it filed appropriately. It filed
24 against a non-diverse defendant. It was
25 entitled to stay in state court. And it wasn't

1 required to drop a client -- a defendant that
2 it didn't want to drop.

3 MS. HARRINGTON: It is true that the
4 case did not go the way that the plaintiffs
5 wanted, but that's not enough for prejudice.

6 JUSTICE SOTOMAYOR: Well, yes --

7 MS. HARRINGTON: For prejudice --

8 JUSTICE SOTOMAYOR: -- because what
9 you're saying is it's prejudice to the court
10 that you're looking at and not prejudice to the
11 party affected.

12 MS. HARRINGTON: Not at all. For it
13 to be prejudice to a party, you need to have a
14 material impairment to that party's ability to
15 assert a claim --

16 JUSTICE SOTOMAYOR: There -- then --

17 MS. HARRINGTON: -- or to defend
18 itself.

19 JUSTICE SOTOMAYOR: -- I think we're
20 going to have to stop there because I do think
21 suing the people you want to sue in the forum
22 you want to sue them is a material
23 disadvantage.

24 JUSTICE BARRETT: Do you think,
25 Ms. Harrington, I mean, kind of picking up on

1 Justice Sotomayor's point, it seems -- it's
2 difficult for me to untangle here the problem
3 of jurisdiction, which I kind of agree with
4 you. I mean, if there wasn't a problem with
5 diversity at the beginning and there was no
6 problem with diversity at the end, and for
7 reasons of efficiency, I mean, Caterpillar
8 would not preclude your position.

9 But there is a sense of unfairness, I
10 think, to the plaintiffs because they just
11 never get the opportunity to appeal or to try
12 to remedy this wrong unless -- I mean, is it
13 just your position they have try to get an
14 interlocutory appeal at removal, and that --
15 that's it? Otherwise, they just are out of
16 luck?

17 MS. HARRINGTON: Well, I think, if
18 there were -- if the dismissed non-diverse
19 defendant were an indispensable party or
20 somehow the absence of that defendant at the
21 trial affected the outcome of the trial, then
22 you might have an ability on appeal to get the
23 judgment vacated and the whole thing sent back
24 to state court. But, here, the absence of
25 Whole Food had literally no effect on the

1 outcome of the trial.

2 JUSTICE BARRETT: So she -- so -- but
3 just to kind of put then a finer point on it,
4 yes, you're saying there just isn't an
5 opportunity to appeal it in the same way, you
6 know, the defendant has a right of removal but
7 can't appeal a remand.

8 MS. HARRINGTON: Right. Well, I mean,
9 this Court explained in Caterpillar that the
10 rules -- the way the rules are structured, it
11 puts a premium on deciding very early in a
12 removed case whether it should be in state
13 court or federal court. And it tolerates some
14 sort of errors, right? If a case is remanded
15 to state court, that decision is never
16 reviewable on appeal, no matter how wrong it
17 was.

18 The -- ordinarily, a plaintiff has 30
19 days to object to a removal on
20 non-jurisdictional grounds. And if there's
21 some reason they could have objected and they
22 didn't object in the 30 days, it's too bad. It
23 stays in federal court.

24 JUSTICE BARRETT: So it's never
25 reviewable unless there's some sort of

1 prejudice like a necessary and indispensable
2 party?

3 MS. HARRINGTON: Right. So I'm not --
4 it's not never reviewable, but it's not -- you
5 wouldn't correct it if you go all the way to
6 final judgment and there was no jurisdictional
7 problem through that time, unless there -- the
8 absence of that dismissed party somehow
9 affected the outcome of the trial, yes.

10 JUSTICE GORSUCH: What do we do about
11 the fact that the problem here was created by
12 your client through an improper removal? I
13 mean, in terms of fairness, that -- you know,
14 your hands aren't exactly clean here.

15 And -- and what do we do about
16 Lexecon, where it was two federal district
17 courts -- we weren't even talking about state
18 court -- and a judgment was entered and there
19 was no argument that the judgment in one
20 district court's better than a judgment in
21 another district court, and we completely sent
22 it back to start over because the plaintiff's
23 choice of forum was denied?

24 MS. HARRINGTON: Well, it wasn't --
25 I'll start with the second if that's all right.

1 In Lexecon --

2 JUSTICE GORSUCH: Let's start with the
3 first.

4 MS. HARRINGTON: Start with the first,
5 okay. The -- I mean, it's not as if -- there's
6 no argument that it was a frivolous argument,
7 right? The district court agreed with us. The
8 Fifth Circuit reversed. We accept that for the
9 purposes of this --

10 JUSTICE GORSUCH: I'm not saying it
11 was frivolous.

12 MS. HARRINGTON: Right. No, I
13 understand.

14 JUSTICE GORSUCH: I mean, Rule 11, my
15 goodness, I would never accuse you of that,
16 but --

17 MS. HARRINGTON: Thank you.
18 Appreciate that.

19 JUSTICE GORSUCH: -- however --
20 however --

21 MS. HARRINGTON: But, in Cat --

22 JUSTICE GORSUCH: -- however, the
23 plaintiff's choice of forum was effectively
24 denied through an improper removal --

25 MS. HARRINGTON: Yes.

1 JUSTICE GORSUCH: -- by your client.

2 MS. HARRINGTON: And that's exactly
3 the argument that was made in Caterpillar, and
4 this Court said: The plaintiff says, look, if
5 we let this happen, if we take an "all's well
6 that ends well" approach, in the words of this
7 Court --

8 JUSTICE GORSUCH: Well, it was fixed
9 by the time of final judgment in Caterpillar
10 and -- and --

11 MS. HARRINGTON: Well, here, it was to
12 your thing, but if I can just -- if I can
13 finish just the thought that they said, you
14 know, it will reward defendants for improper
15 removal and it will override the plaintiff's
16 choice of forum.

17 And the court said those are very
18 important considerations, but they are
19 overridden, when you have a final judgment,
20 by principles of efficiency, economy --

21 JUSTICE GORSUCH: All right. Move
22 on to the second one.

23 MS. HARRINGTON: -- and finality.

24 So, for Lexecon, the problem there was
25 that there -- the -- the problem hadn't been

1 cured by the time of final judgment. The
2 district court that entered the judgment never
3 had the authority to do that.

4 But, here, again, because the
5 non-diverse defendant never really made it in
6 the door to federal court, through the whole
7 trial and at final judgment, there were only
8 completely diverse parties.

9 And so there's no lingering
10 jurisdictional defect. There really never was
11 a jurisdictional defect with this case in the
12 district court.

13 JUSTICE KAGAN: Well, I guess that's a
14 question. You know, last year, we talked about
15 36 -- 1367(c) in Royal Canin, and we talked
16 about how 1367(c) says when you have a federal
17 claim and a supplemental state claim and the
18 federal claims drop out --

19 MS. HARRINGTON: Yeah.

20 JUSTICE KAGAN: -- that 1367(c)
21 contemplates that the state claims, just those,
22 there's still discretionary jurisdiction over
23 them.

24 Now it's obvious that for various good
25 and prudential reasons the court should dismiss

1 those a lot of the time but not all of the
2 time. The court -- you know, the court still
3 has jurisdiction, supplemental jurisdiction,
4 over the -- the state supplemental claims once
5 the federal claims drop out.

6 And the way Royal Canin talks about
7 that is that -- is because the federal claims
8 have not dropped out for good. They can re-
9 emerge on appeal. And -- and, because they're
10 not gone for good, there remains jurisdiction
11 over the state claims.

12 And it seems to me there should be no
13 different rule with respect to diversity, that
14 even once one of the parties was dismissed,
15 because that party still had the potential
16 to -- to get back into the suit and destroy
17 complete diversity, in fact, the -- the
18 jurisdictional defect was not cured.

19 MS. HARRINGTON: So the difference
20 there is that when you have a federal claim
21 that is dismissed by the court or you -- you
22 know, someone taken out of the case by the
23 court, that is the federal court exercising
24 jurisdiction over that claim. So that claim is
25 in the case.

1 When you have a non-diverse defendant
2 dismissed as fraudulently joined, there is no
3 exercise of jurisdiction over the claim
4 between -- from the plaintiffs to that
5 non-diverse defendant, right, because I think
6 everyone agrees the district court doesn't have
7 jurisdiction over the case if that claim is in
8 the case.

9 And so there's jurisdiction to
10 determine jurisdiction always. And so the
11 federal court says: I don't have jurisdiction
12 over this defendant because it's not a real
13 defendant and it's out of the case, and,
14 therefore, I have jurisdiction over what
15 remains, which is state law claims between
16 completely diverse parties.

17 JUSTICE KAGAN: I think I'm missing
18 it. In one case, the court says: I'm getting
19 rid of these federal claims because you failed
20 to state a claim, right?

21 MS. HARRINGTON: Yeah.

22 JUSTICE KAGAN: And in the other case,
23 I'm getting rid of this party because it -- the
24 party's been fraudulently joined. And that
25 produces a difference in outcome such that

1 there remains jurisdiction over the federal
2 claims, but there doesn't remain jurisdiction
3 over the remaining part --

4 MS. HARRINGTON: Yes.

5 JUSTICE KAGAN: -- over the diversity
6 suit?

7 MS. HARRINGTON: Yes, because, in the
8 former, there's a merits determination as to
9 the claims. There's an exercise of
10 jurisdiction over those federal claims.

11 JUSTICE KAGAN: I mean, I get the idea
12 that that's -- I mean, that's true. It's like,
13 why should that difference make a difference?

14 It's saying, in both cases, the thing
15 that created the federal jurisdiction is gone,
16 and the question is, does the -- the federal
17 court still have jurisdiction over what
18 remains? And -- and what Royal Canin says is,
19 yes, because the -- the thing that created
20 federal jurisdiction can still come back.

21 MS. HARRINGTON: So it is opposite
22 here, right? The thing that would have
23 destroyed federal jurisdiction --

24 JUSTICE KAGAN: Correct. All right.

25 MS. HARRINGTON: -- never gets in

1 the --

2 JUSTICE KAGAN: I got that.

3 MS. HARRINGTON: Right. But never
4 gets in the door.

5 I mean, fraudulent joinder is a little
6 bit of a weird doctrine, right, because the
7 only reason you can bring a fraudulent joinder
8 case to federal court is on this fiction that
9 one of the defendants isn't actually a
10 defendant in the case because, if it were,
11 there wouldn't be jurisdiction.

12 JUSTICE JACKSON: But, Ms. Harrington,
13 don't you have to be right about that in order
14 to be able to rely on this argument?

15 I mean, I think the problem is that to
16 the extent the district court was wrong about
17 the fraudulent joinder and that Whole Foods
18 should have been in this case, then you do have
19 a jurisdictional defect, which is non-diversity
20 in a circumstance in which there should be --
21 you have to have diversity in order to have
22 federal jurisdiction.

23 I don't know that you can just isolate
24 that unless you're right, and the problem is
25 you're not in this case.

1 MS. HARRINGTON: Right. So a great
2 question. And I think you're wrong about the
3 implications. And so you either would view the
4 dismissed non-diverse defendant as out of the
5 case, not a party, or as continuing to be a
6 party.

7 My friends on the other side want to
8 say that's still a party because it might be
9 reversed on appeal.

10 If that's true, you can never have
11 jurisdiction in a fraudulent joinder case
12 because that jurisdiction --

13 JUSTICE JACKSON: No, you could have a
14 situation where, as you urged in this case, the
15 party could actually do an interlocutory appeal
16 and get the final question as to whether or not
17 this person should have been a party.

18 MS. HARRINGTON: But my point is, even
19 if the -- even if the Fifth Circuit had gone
20 our way and said, no, that -- Whole Foods was
21 correctly dismissed, there wouldn't have been
22 jurisdiction over the final judgment because,
23 under their view and under the view you're
24 positing, Whole Foods --

25 JUSTICE KAGAN: I get -- I mean, I get

1 the idea it's a little bit of a conundrum,
2 but -- but if -- if, in fact, you're right and
3 that there is a fraudulent joinder, doesn't
4 that just get read back in to the -- to the
5 situation that existed at final judgment?

6 MS. HARRINGTON: I don't think so. I
7 mean, the Fifth Circuit's decision, with all
8 due respect to them, they don't have a time
9 machine. They can't go back and change what
10 actually happened.

11 JUSTICE JACKSON: No, but that's the
12 Caterpillar situation. You would just concede
13 at that point. I mean, you would cure it,
14 right?

15 So, fine, fine, you know, Whole Foods
16 was -- was fraudulently joined and we could
17 continue to go on, but, because you win in this
18 situation, you would cure it.

19 MS. HARRINGTON: No, but, I mean, that
20 would be Newman-Green.

21 In Caterpillar, the -- the non-diverse
22 defendant had already -- was already out of the
23 case before a final judgment was entered.

24 JUSTICE JACKSON: I understand. But
25 the idea is that some jurisdictional defects

1 can be cured by the time we get to final
2 judgment. And Caterpillar, the cure was the
3 person was actually settled out of the case
4 permanently.

5 MS. HARRINGTON: Yeah.

6 JUSTICE JACKSON: And so we don't
7 worry about the fact that it -- previously
8 in the case there might have been a
9 jurisdictional problem.

10 What I'm saying is that same solution
11 would seem to me to be the answer to the
12 conundrum that you're talking about with
13 Justice Kagan.

14 MS. HARRINGTON: I -- I disagree,
15 Justice Jackson. I think either a party is in
16 a case or isn't in a case in the district
17 court.

18 JUSTICE JACKSON: No, I understand.
19 And that creates the defect, and the question
20 is, can that be cured?

21 And in the situation you're positing,
22 maybe because, by the time you get to final
23 judgment, then perhaps the plaintiff would
24 agree to -- to the defect in this way or agree
25 to the cure, and then we'd be fine.

1 MS. HARRINGTON: So -- but I
2 understood -- I mean, what I was saying is
3 that if -- if the Fifth Circuit had decided
4 on appeal that Whole Foods was correctly
5 dismissed, that -- that the fraudulent joinder
6 ruling was correct, under the view you're
7 positing, where Whole Foods was a party all
8 along, there still wouldn't have been
9 jurisdiction to enter a final judgment because
10 Whole Foods would have been a party until it
11 was affirmed on appeal that their dismissal was
12 correct.

13 JUSTICE BARRETT: Ms. Harrington --
14 I'm sorry, were you finished?

15 MS. HARRINGTON: No, go ahead. I mean
16 go ahead.

17 JUSTICE BARRETT: So you said at the
18 beginning this would kind of destroy fraudulent
19 joinder doctrine, and I take it that one of the
20 reasons is this conundrum that you're
21 discussing.

22 MS. HARRINGTON: Yeah.

23 JUSTICE BARRETT: What about the
24 incentives for people like your client who
25 remove and then can't count on the fraudulent

1 joinder dismissal? I mean, then your client --
2 I mean, would you want to remove if you thought
3 you were at risk of investing all the resources
4 in litigating the case to a final judgment and
5 then potentially losing it on appeal?

6 I mean, what would it do to the
7 doctrine just from a matter of litigation
8 incentives?

9 MS. HARRINGTON: I mean, I think it
10 creates strange incentives, but I'm not sure --
11 you know, I think defendants who think they
12 have a right to remove will still remove. We
13 assume good faith by parties. They're not
14 going to assert a fraudulent joinder argument
15 if they don't think it's valid.

16 But it creates opportunity for a
17 great deal of waste and sort of violence to
18 principles of finality and economy because
19 nothing that happened in this case after the
20 initial dismissal of Whole Foods involved any
21 non-diverse party.

22 There was two years of litigation.
23 There was a trial. There was final judgment
24 on the merits. All of that was among
25 completely diverse parties. Whole Foods never

1 got in the door.

2 And so there's no reason to go back
3 and say: Well, we're just going to get rid of
4 all of that and have a do-over because the
5 absence of Whole Foods didn't have any effect
6 on the outcome, it didn't have any effect on
7 what happened at trial.

8 The plaintiffs could have sought
9 third-party discovery against Whole Foods.
10 They didn't. Whole Foods was barely even
11 mentioned in the trial.

12 JUSTICE JACKSON: But can we go back
13 to Justice Sotomayor's point about prejudice?

14 So is it your view that there would
15 be no potentially preclusive effect of this
16 judgment on a subsequent determination or a
17 subsequent trial related to Whole Foods?

18 I mean, is your client not going to
19 argue that Hain should lose that as well?

20 MS. HARRINGTON: I mean, if they --
21 if -- that Hain should lose. I mean, if -- if
22 the plaintiffs --

23 JUSTICE JACKSON: Or that Whole Foods
24 should lose.

25 MS. HARRINGTON: So I think --

1 JUSTICE JACKSON: Whole Foods.

2 MS. HARRINGTON: Right. That's --

3 JUSTICE JACKSON: I mean, I -- I sense
4 a potential prejudice from having to try this
5 twice when initially the plaintiff here wanted
6 to bring one lawsuit against both of these
7 defendants.

8 And so I guess I'm asking, if we say
9 it's okay to affirm the judgment with respect
10 to this one defendant and it's fine because the
11 plaintiff can go on to sue -- sue Whole Foods,
12 is there any possibility of some kind of
13 preclusion in the Whole Foods lawsuit?

14 MS. HARRINGTON: So that's a question
15 for state law that would need to be decided by
16 the state court, I think. But, even if there
17 were, even if the state court did say, yes,
18 this determination that was made by the
19 district court has preclusive effect with
20 respect to the claims against Whole Foods, that
21 wouldn't be prejudice.

22 JUSTICE JACKSON: Why not?

23 MS. HARRINGTON: That's just the
24 ordinary consequence of losing at trial, right?
25 I mean, there's nothing about the absence of

1 Whole --

2 JUSTICE JACKSON: But we wanted to
3 have one trial where both of these defendants
4 were in there, and perhaps we wouldn't have
5 lost under those circumstances.

6 MS. HARRINGTON: But nothing about the
7 absence of Whole Food -- Whole Foods or the
8 federal forum affected the outcome of the case.
9 The district court judge, after hearing the
10 plaintiff's entire case, said you didn't
11 present evidence of causation. The absence of
12 Whole Foods had no effect on that. The federal
13 forum had no effect on that. That's just a
14 failure of proof by the plaintiffs.

15 And so, if it were determined in the
16 state courts that having to live with that,
17 with a preclusion effect, that's not prejudice.
18 That's just what happens --

19 JUSTICE JACKSON: So is your rule
20 turning on the actual judgment, whether it's
21 about causation or whatnot? I mean, in a -- in
22 a different case, let's say there was some
23 implication of having another defendant in it,
24 would you have a different rule as to whether
25 or not the judgment should be upheld?

1 MS. HARRINGTON: Yes. If the absence
2 of the dismissed defendant affects the outcome
3 of the case, then I think the plaintiff would
4 have a good argument that the judgment should
5 be vacated, and they should have a chance to
6 start over in state court. But nothing like
7 that happened here. There really -- the trial
8 would have been exactly the same if Whole Foods
9 has been there, and the outcome also would have
10 been the same.

11 To pick up on one aspect of your
12 question --

13 JUSTICE GORSUCH: So are you saying
14 sometimes --

15 MS. HARRINGTON: Sometimes what?

16 JUSTICE GORSUCH: -- vacatur is the
17 appropriate remedy?

18 MS. HARRINGTON: If the absence of the
19 dismissed defendant affected the outcome of the
20 case or materially --

21 JUSTICE GORSUCH: Apportioning
22 liability, things like that?

23 MS. HARRINGTON: I mean, it could --
24 it could be with apportioning liability, but,
25 here, there was no liability to apportion.

1 JUSTICE GORSUCH: No, I -- no, I
2 understand that.

3 MS. HARRINGTON: Yes.

4 JUSTICE GORSUCH: So you're saying
5 your rule is really case-specific.

6 MS. HARRINGTON: So, as with any
7 prejudice determination, it will depend on what
8 actually happened in the case. My friends on
9 the other side want you to think about
10 prejudice sort of in the abstract with
11 hypothetical parties, but you really have to
12 look at whether there was prejudice to the
13 parties in this case in these circumstances,
14 and there was none.

15 JUSTICE GORSUCH: So there usually
16 will be prejudice or often prejudice but just
17 not here?

18 MS. HARRINGTON: There could be
19 prejudice. I mean, that would depend on the
20 circumstances, you know.

21 JUSTICE GORSUCH: Okay.

22 JUSTICE BARRETT: But then it's not
23 really about jurisdiction, is it?

24 MS. HARRINGTON: No. I would --

25 JUSTICE BARRETT: I mean, if it's

1 turning on prejudice, I mean, the court --
2 normally, we don't think of whether the court
3 had jurisdiction or not as dependent on whether
4 there is prejudice to a party.

5 MS. HARRINGTON: Right. I'm talking
6 about -- that's -- the question is, like, what
7 is the remedy for the fact that you should have
8 been able to have these two defendants
9 together, right? The automatic remedy when you
10 should have been able to sue two defendants
11 together, one was improperly dismissed, and you
12 didn't, is not automatically to vacate the
13 judgment for the other defendant.

14 You would only do that if the absence
15 of the dismissed defendant affected the
16 outcome, affected that judgment. But where it
17 didn't, there's no reason to -- to vacate that
18 final judgment.

19 JUSTICE GORSUCH: I mean, it is a
20 pretty awkward rule to say that a
21 jurisdictional defect, the remedy for it
22 depends upon prejudice and -- and a particular
23 showing. And, again, we didn't do that in
24 Lexecon.

25 MS. HARRINGTON: Well, I'll try one

1 more time. There's -- there's no
2 jurisdictional defect here once you get rid
3 of --

4 JUSTICE GORSUCH: I understand your
5 point.

6 MS. HARRINGTON: -- the dismissed
7 defendant. Right.

8 JUSTICE GORSUCH: I understand your
9 point.

10 MS. HARRINGTON: Right.

11 JUSTICE GORSUCH: Okay.

12 MS. HARRINGTON: And so the question
13 is, if you -- basically, if the error was
14 separating these claims against the two
15 different defendants, what is the remedy for
16 that error? That's really what the error was
17 here.

18 JUSTICE KAGAN: But -- but -- but
19 you're treating it as, oh, we separated two
20 defendants improperly. But, in fact, from the
21 plaintiff's point of view, what was -- what --
22 the thing that went wrong is that the plaintiff
23 is the master of her complaint. She clearly
24 structured a suit in order to bring it in state
25 court. That was why she joined these two

1 parties perfectly legitimately, in order to
2 have the suit in state court, rather than in
3 federal court, where it was.

4 And the effect of this district court
5 misjudgment was -- was not that two parties
6 were separated; it's that the suit was tried in
7 the wrong place from the plaintiff's point of
8 view. And the plaintiff's point of view is the
9 thing that should matter because the plaintiff
10 is the master of her complaint.

11 MS. HARRINGTON: So I'll say a couple
12 things. It is true that the plaintiff is the
13 master of her complaint, but that isn't a
14 jurisdictional principle. That's sort of an
15 overarching principle that guides federal --

16 JUSTICE KAGAN: It's an overarching
17 principle of how litigation should work, and it
18 also has a kind of equitable dimension, that
19 you've deprived the plaintiff of an opportunity
20 to do what our civil procedure system generally
21 allows.

22 MS. HARRINGTON: Yes, and exactly that
23 argument was made in Caterpillar. And this
24 Court said that's an important principle,
25 this -- the plaintiff is the master of her

1 complaint, but when you litigate a case to
2 final judgment, it can be overridden by other
3 principles of finality, efficiency, and
4 economy.

5 JUSTICE KAGAN: Right. Now that was a
6 case where the Court was absolutely certain
7 that there was jurisdiction at the -- at the
8 time of final judgment. And, here, there
9 remains a question about whether there was
10 jurisdiction at the time of final judgment --

11 MS. HARRINGTON: There's no question
12 in my mind.

13 JUSTICE KAGAN: -- given the fact that
14 the -- that Whole Foods is lurking out there,
15 ready to come back into the case if the
16 district court got it wrong, as it did.

17 MS. HARRINGTON: Well, again, I'd say,
18 to be a party in a case, you have to be under
19 the exercise -- the -- the district court has
20 to exercise jurisdiction against you. And that
21 never happened here. The district court made a
22 prediction about what it thought state courts
23 would do with the claims against Whole Foods
24 and said I don't think there's a valid claim
25 and dismissed, right?

1 The -- the plaintiffs can -- in most
2 cases, can then go pursue those claims in the
3 state court if they wish. There's never any
4 exercise of federal jurisdiction over that
5 non-diverse defendant. And so then the whole
6 case proceeds between completely diverse
7 parties, including the entry of final judgment.

8 So I don't think there's a real
9 question about whether -- the way this Court
10 has phrased it is whether the district court
11 would have had jurisdiction over the case in
12 the form it took at the time of final judgment.
13 And there's really no question that that
14 certainly was -- was true here, that the
15 district court had jurisdiction over the case
16 in the form it took at final judgment.

17 And, again, if you view Cat -- view
18 Whole Foods as having lurked through the case
19 the whole time, then you really couldn't ever
20 have fraudulent joinder removal because there
21 would never be jurisdiction to enter final
22 judgment until the dismissal of that
23 non-diverse defendant was later affirmed on
24 appeal.

25 JUSTICE JACKSON: Couldn't it be

1 affirmed interlocutorily? Those kinds of
2 judgments can be appealed in the middle of the
3 case, correct?

4 MS. HARRINGTON: So they could, and
5 you could -- you know, if a plaintiff were
6 worried that the dismissed defendant was
7 somehow indispensable, they could seek a Rule
8 54(b) judgment or 1292(b). But -- but, for
9 this --

10 JUSTICE JACKSON: And in that case, we
11 wouldn't have to wait until the final judgment.
12 We would get the answer as to whether or not
13 the party should be -- should have been in
14 there, and then the case would go forward.

15 MS. HARRINGTON: Yes, but you
16 shouldn't -- but requiring that in every
17 fraudulent joinder case should not be the rule,
18 in the same way that this Court in Caterpillar
19 said we shouldn't require 1292(b) --

20 JUSTICE JACKSON: I mean, we're not
21 requiring it. It's just the parties are taking
22 risks. Everybody's strategic here and making
23 determinations about what is worth pursuing.
24 You can have an interlocutory appeal; you
25 cannot. You can wait; you cannot. But you're

1 taking a risk that when you get to the end of
2 the case, this jurisdictional defect will be
3 realized and not cured and you might suffer.

4 MS. HARRINGTON: If you adopt that
5 approach, it would slow down every fraudulent
6 joinder removal, and it might not actually
7 solve the problem for the reasons given in our
8 brief. But I see the red light's on.

9 CHIEF JUSTICE ROBERTS: Thank you,
10 counsel.

11 Anything further? No?

12 Thank you.

13 MS. HARRINGTON: Thank you.

14 CHIEF JUSTICE ROBERTS: Mr. Post.

15 ORAL ARGUMENT OF RUSSELL S. POST

16 ON BEHALF OF THE RESPONDENTS

17 MR. POST: Mr. Chief Justice, and may
18 it please the Court:

19 The question in this case is whether a
20 federal court can acquire jurisdiction through
21 error. If the case is decided according to the
22 first principles of federal jurisdiction and
23 the rationale of Royal Canin, to which the
24 Court has referred this morning, the answer
25 must be no. Federal courts are courts of

1 limited jurisdiction, and the obligation to
2 respect those limits is inflexible and without
3 exception.

4 The Court should not make an exception
5 to the party-neutral rules that Congress has
6 established for a case where a plaintiff
7 maintained a valid state law claim against a
8 non-diverse defendant through final judgment.

9 Appeals to judicial efficiency have
10 never been a reason to ignore the limited
11 jurisdiction of the federal courts, and
12 Caterpillar confirms that conclusion. It held
13 that vacatur was not required only because the
14 lack of complete diversity in that case was
15 cured by the voluntary dismissal of the
16 non-diverse defendant prior to final judgment.
17 And that cure was reinforced by a Rule 54(b)
18 partial final judgment that eliminated any
19 jurisdictional uncertainty.

20 Here, unlike in Caterpillar, the
21 defect was never cured. That's the crux of
22 this case. The Court should hold that an
23 erroneous and involuntary dismissal of a
24 non-diverse defendant does not create complete
25 diversity because jurisdiction cannot be

1 created through error.

2 Finally, contrary to the argument that
3 you've heard this morning, that proposition is
4 perfectly consistent with the Court's
5 fraudulent joinder jurisprudence. An
6 interlocutory ruling that a party was
7 fraudulently joined is effective while it
8 remains in force, and the citizenship of that
9 party is disregarded.

10 But the party remains in the case, and
11 the ruling, like any other pretrial ruling,
12 remains subject to appellate review. If the
13 ruling is upheld, then complete diversity is
14 intact. But, if it is reversed, then complete
15 diversity is lacking and the judgment must be
16 vacated. That's exactly the same as the core
17 rationale of Royal Canin earlier this year, and
18 it should control this case.

19 I welcome the Court's questions.

20 JUSTICE THOMAS: This would be a lot
21 cleaner case if you had appealed the dismissal.
22 Why didn't you?

23 MR. POST: Your Honor, because the
24 Court held in Caterpillar that there's no
25 obligation to seek immediate review to preserve

1 the right to an ultimate appeal on this issue.
2 This is no different than any other threshold
3 jurisdictional issue that arises and is
4 preserved.

5 This most frequently arises when a
6 defendant wants to preserve an objection, for
7 example, to Article III jurisdiction based on a
8 standing objection. Those types of issues are
9 frequently preserved early in litigation and
10 are not ultimately vindicated until the end of
11 the appeal at -- for a final judgment. That's
12 sort of inherent in the doctrine that appellate
13 review is ordinarily deferred until after final
14 judgment under this Court's merger rule.

15 JUSTICE BARRETT: It seems --

16 JUSTICE SOTOMAYOR: District courts
17 still retain --

18 MR. POST: I'm sorry, Your Honor?

19 JUSTICE SOTOMAYOR: District courts
20 still retain the power to certify without the
21 request of either party.

22 MR. POST: Of course. Absolutely.

23 JUSTICE SOTOMAYOR: So, if any court
24 is worried, they could enter a 54(b) --

25 MR. POST: That's absolutely --

1 JUSTICE SOTOMAYOR: -- certification?

2 MR. POST: -- that's absolutely right,
3 Your Honor. And, in fact, I would point out
4 that in 1980, in the Curtiss-Wright decision,
5 this Court held that one of the guiding
6 principles for district courts is the
7 consideration of judicial administrative
8 interests. That's what should guide a court in
9 making that determination.

10 And so, if there's concerns about
11 uncertainty about jurisdiction and potential
12 waste, Rule 54(b) is the resolution for that
13 sort of concern. District court could have
14 pursued it here. The defendants could have
15 requested it to resolve the uncertainty, but
16 they elected --

17 JUSTICE BARRETT: But you could --

18 MR. POST: -- not to do so.

19 JUSTICE BARRETT: -- too and -- and
20 your position was that you were standing on
21 Caterpillar. I mean, Caterpillar does not
22 answer this question clearly one way or
23 another. So, I mean, that makes it seem like
24 your choice was to take a wait-and-see approach
25 and then decide whether you liked the result or

1 not before you --

2 MR. POST: No.

3 JUSTICE SOTOMAYOR: -- chose to fight
4 it.

5 MR. POST: That's not correct, Your
6 Honor. I do want to to confirm the principal
7 point that the Court made. Caterpillar does
8 not resolve this question, as the Petitioners
9 acknowledge in their reply brief, because it
10 recognizes that if the jurisdictional defect
11 remains uncured at final judgment, vacatur is
12 required.

13 JUSTICE BARRETT: It doesn't -- it
14 doesn't resolve -- I mean, let's see, there are
15 different ways to --

16 MR. POST: Correct.

17 JUSTICE BARRETT: -- but it doesn't
18 resolve the question. So my point for the
19 purposes of this question is solely that
20 you're -- you're saying that you were standing
21 on a case that doesn't squarely resolve the
22 question and that's why you didn't try to seek
23 an interlocutory appeal?

24 MR. POST: Not, Your Honor, with
25 respect to the preservation holding.

1 Caterpillar does squarely resolve the question
2 of preservation that a party that --

3 JUSTICE BARRETT: Right.

4 MR. POST: -- raises the objection to
5 jurisdiction has done all that is necessary to
6 preserve the right to an ultimate appeal.
7 Again, that's a party-neutral rule that flows
8 from the final judgment rule. It's just the
9 same principle that applies when a defendant
10 objects to jurisdiction at the outset of the
11 case. There's not an obligation to take an
12 immediate appeal in order to vindicate that
13 kind of --

14 JUSTICE JACKSON: But I guess Justice
15 Barrett's --

16 JUSTICE BARRETT: What do you think
17 that -- oh.

18 JUSTICE JACKSON: I was just going to
19 say, your question is why didn't you appeal.

20 JUSTICE BARRETT: Right. But that --
21 I mean, whatever. We'll just let -- we'll just
22 let that go.

23 What is your answer to the questions
24 about preclusion that Justice Jackson was
25 asking you earlier? What would happen in state

1 court? Do you think you would be, you know,
2 barred by non-mutual issue preclusion from
3 relitigating some of these issues?

4 MR. POST: That is a controversial
5 question. We certainly would not concede that
6 preclusion would lie here. I would argue that
7 there may be exceptions under state law both
8 because of the nature of the jurisdictional
9 ruling in the first instance and because there
10 could be differences in sufficiency evaluation
11 under state law as opposed to federal law, but
12 all of that presupposes that the jurisdictional
13 problem could be cured and that that judgment
14 could actually have any substance on the
15 merits, which I think is incorrect.

16 I do want to speak directly to the
17 Court's question. The reason that there was
18 not an immediate appeal taken was not only that
19 the plaintiffs were relying on their right to
20 seek review after a final judgment.

21 But, as a practical matter, in
22 litigation, litigants make their best
23 arguments, they preserve their positions, they
24 respect the rulings, and they move forward.
25 And our clients moved forward to litigate the

1 case on the merits as best they could with
2 respect for the district court's ruling.

3 Your Honor --

4 JUSTICE JACKSON: What about
5 prejudice, though? You know, one of the
6 reasons why I brought up preclusion was because
7 there was an argument that given that Whole
8 Foods was not actually part of this litigation,
9 that you're not prejudiced by having to sue
10 them in state court separately.

11 MR. POST: Well, Your Honor, of
12 course, prejudice is not a material
13 consideration where we're dealing with the
14 first principles of limited federal
15 jurisdiction. And so I think, principally, the
16 plaintiffs do not have to demonstrate prejudice
17 to satisfy the Court that there's a lack of
18 jurisdiction in this instance.

19 But it certainly is the case that the
20 plaintiff, as the Court has indicated, is the
21 master of the complaint. And that is a
22 jurisdictional principle, contrary to what
23 counsel said.

24 The right of the plaintiff to
25 configure the case for purposes of litigation

1 is a function of the congressional scheme that
2 makes jurisdiction turn on the claims and the
3 parties. And so --

4 JUSTICE BARRETT: I don't think you're
5 answering Justice Jackson's question, though.
6 I have the same one, right?

7 Aren't you asking whether the judgment
8 was -- yeah, I mean, how did it hurt your
9 client that Whole Foods wasn't in the case
10 when, you know, your friend on the other side
11 is pointing out that nothing in the case turned
12 on Whole Foods or its evidence.

13 Put aside the jurisdictional point for
14 now.

15 MR. POST: And I appreciate the point.
16 My point was simply to be that the lack of the
17 state forum in a single proceeding in which
18 both defendants could be brought within the
19 same proceeding is itself prejudicial.

20 JUSTICE BARRETT: So I take it it's a
21 very abstract prejudice in --

22 MR. POST: That --

23 JUSTICE BARRETT: -- the same way that
24 your friend on the other side said it's
25 abstract, it didn't really affect the outcome.

1 You're not saying the outcome would have been
2 different. You can't point to anything like
3 that.

4 MR. POST: That's the jurisdictional
5 principle. That's right, Your Honor.

6 With respect to practical prejudice,
7 as a practical matter, the way this case was
8 litigated with Whole Foods out of the case,
9 there was no opportunity for the plaintiffs to
10 develop the evidence that they would have
11 developed about the role of Whole Foods in
12 actually making express misrepresentations
13 about the quality of the baby food at issue.

14 And so it is true that as the case was
15 tried, it was tried solely based on the quality
16 of the product, but that was an artifact of the
17 erroneous ruling, an erroneous Erie guess made
18 by the district court about the content of
19 state law that should have been a determination
20 made by the state courts consistent with the
21 congressional scheme.

22 JUSTICE SOTOMAYOR: I'm sorry, you
23 lost on causation, meaning I thought you lost
24 on first principle, which is that even if there
25 was toxic substances, they didn't cause this

1 condition.

2 MR. POST: Your Honor, there's a
3 dispute about the accuracy of that ruling.
4 That's correct. The district court found that
5 there was a failure of proof of causation.

6 JUSTICE SOTOMAYOR: Well, you lost
7 that on appeal, so it's gone.

8 MR. POST: We did -- we did not, Your
9 Honor. That question was never decided by the
10 Fifth Circuit. It would remain to be decided.

11 JUSTICE SOTOMAYOR: I see. Thank you.

12 MR. POST: And our position is that
13 the proof that was put forward at trial is
14 sufficient --

15 JUSTICE SOTOMAYOR: Okay, counsel, you
16 answered.

17 MR. POST: Thank you, Your Honor.

18 JUSTICE ALITO: Well, you made a
19 reference to the possibility that the standard
20 for -- for judgment as a matter of law might be
21 different in -- in Texas, in the Texas courts
22 than in the federal courts, or did I
23 misunderstand what you said?

24 MR. POST: Your Honor, I think that's
25 a possibility. I think, if it were necessary

1 to litigate the preclusion question in a state
2 court proceeding, then it would be necessary to
3 determine whether the legal rule that was
4 applied in the federal courts, if, in fact, one
5 assumed the Fifth Circuit upheld judgment as a
6 matter of law, was applying the same standard
7 for sufficiency that the state courts would
8 apply.

9 That's not a question that the parties
10 have developed because, to this point, we've
11 clashed on the merits only under the Fifth
12 Circuit's precedent.

13 I want to pick up the point that
14 Justice Kagan made regarding Royal Canin and
15 Section 1367(c)(3) because it's not a point
16 that was explored in the briefing, but I do
17 think it is powerful because the holding of
18 Royal Canin, of course, is that a plaintiff's
19 voluntary amendment that abandons a federal
20 question claim completely deprives the court of
21 original jurisdiction and therefore deprives it
22 of discretion to entertain a supplemental
23 jurisdiction claim under state law claims.

24 The necessary premise of that is that
25 where 1367(3) states that otherwise, a federal

1 court that dismisses the original jurisdiction
2 claim may retain jurisdiction over the state
3 law claims, is that if the federal court has
4 involuntarily dismissed the claim, it doesn't
5 lose jurisdictional significance. That claim,
6 although dismissed in an interlocutory posture,
7 retains its jurisdictional significance for
8 purposes of original jurisdiction.

9 JUSTICE KAGAN: So I heard
10 Ms. Harrington make two points with respect to
11 that point. One was that it's different when
12 the district court does it on the merits and
13 has asserted jurisdiction over the suit, when
14 that decision happens. And the second is that
15 if the -- if we applied the same rule here, we
16 would have a real problem with any fraudulent
17 joinder case because you could never say that
18 at the time of judgment there was, in fact,
19 jurisdiction.

20 MR. POST: Your Honor, if I may, I'll
21 speak to the second point first, and I think
22 that that's just a false understanding of
23 fraudulent joinder doctrine. And there's no
24 principal way to draw the distinction that the
25 Petitioners are trying to draw.

1 And I would call the Court's attention
2 to two of your decisions that I think
3 illustrate the point that I've made, which is
4 that when a party is found to have been
5 fraudulently joined by a district court, its
6 citizenship is disregarded, but it doesn't
7 cease to be a party to the litigation. That
8 remains subject to appellate review.

9 So two cases the Court should
10 consider. The first is the Kettelhake case,
11 which is discussed in our brief. That's one of
12 the cases from the voluntary/involuntary line
13 of authority, and in that case, the state court
14 not only found that there was no viable claim
15 against the non-diverse defendant but, under
16 state procedure, ordered a involuntary non-suit
17 and so separated formally that party from the
18 litigation.

19 And this Court held when the question
20 reached this Court that that involuntary
21 non-suit did not so terminate the party's
22 significance from the case that it resolved a
23 jurisdictional issue.

24 The second case that I would call to
25 the Court's attention, which isn't discussed in

1 the briefing, is Mecom versus Fitzsimmons.
2 It's 20 -- 284 U.S. 183, a 1931 decision by
3 this Court in which this Court reversed a
4 fraudulent joinder ruling, and the necessary
5 premise of that is that that party remained in
6 the case until it arrived here for this Court
7 to reverse the ruling. The party didn't
8 disappear immediately.

9 As a practical matter, Whole Foods has
10 been in this case from day one. They are here
11 today. Their counsel is sitting here at
12 counsel table because they are a party to this
13 litigation. You can't pretend otherwise.

14 JUSTICE JACKSON: That was -- that was
15 one of Justice Kagan's points. Was there
16 another one?

17 MR. POST: Your Honor, I think --

18 JUSTICE JACKSON: The second -- the
19 first.

20 MR. POST: -- the first point was that
21 there's a distinction to be drawn between a
22 merits-based disposition and a jurisdictional
23 disposition. I don't know that that's a stable
24 distinction in principle.

25 But, certainly, when you're dealing

1 with fraudulent joinder, for which the question
2 is whether there's a reasonable basis for the
3 claim, the substance of the analysis merges.
4 And so a federal district court's interlocutory
5 determination to dismiss a federal question
6 claim has the same consequent as its
7 interlocutory determination that there's
8 fraudulent joinder. The party still remains in
9 the litigation subject to appellate review,
10 and, therefore, the jurisdictional issue is not
11 cured.

12 CHIEF JUSTICE ROBERTS: Thank you,
13 counsel.

14 MR. POST: Thank you, Your Honor.

15 CHIEF JUSTICE ROBERTS: Rebuttal,
16 Ms. Harrington?

17 REBUTTAL ARGUMENT OF SARAH E. HARRINGTON
18 ON BEHALF OF THE PETITIONERS

19 MS. HARRINGTON: Thank you, Mr. Chief
20 Justice. Just five quick points.

21 First, on the point that we know that
22 Whole Foods is still a party because they're
23 sitting here with us at counsel table, as they
24 are, there are other circumstances in which a
25 person or a company can be a party to an appeal

1 without having been a party at the trial.

2 So, for example, if a plaintiff asked
3 for permission to add another defendant under
4 Rule 20 and the district court says no, the
5 plaintiff can appeal that denial on appeal from
6 final judgment, and the person who was never
7 added, the defendant, would be a party to the
8 appeal but never having been a party to the
9 district court. And there are other examples.

10 So I would ask you to reject that
11 argument.

12 To circle back to Justice Gorsuch --
13 Gorsuch's question about including prejudice in
14 a jurisdictional inquiry, I just want to try to
15 clarify it's not that you would think about
16 prejudice in deciding whether there was or
17 wasn't jurisdiction. It's more that you would
18 say there was jurisdiction and then you ask,
19 did the absence of the dismissed party affect
20 the outcome? And there's where the prejudice
21 comes in.

22 The third point is just on whether the
23 absence of Whole Foods affected the outcome.
24 My friend said, well, we would have developed
25 all this evidence about what Whole Foods said.

1 As Justice Sotomayor said, they lost on
2 causation. It doesn't matter what Whole Foods
3 said or didn't say. If you can't prove
4 causation, you can't prove any of your claims
5 in this case.

6 On the "master of the complaint"
7 principle being jurisdictional, this Court
8 rejected that view implicitly in Caterpillar.
9 They said, you know, it's an important
10 principle, but it gives way to principles of
11 finality and economy.

12 And on the final point, I want to say
13 it's not just me saying that things change
14 after a final judgment is entered. That's also
15 written into Section 28 U.S.C. 1447(c), where
16 Congress has said, if you realize, District
17 Court, before you enter a final judgment that
18 you lack jurisdiction, you should send it back.
19 But, implicitly, then things change after final
20 judgment.

21 And also, this Court's case in
22 Newman-Green recognized that courts of appeals
23 can dismiss a lingering non-diverse party after
24 a final judgment in order to preserve final
25 judgment. The court of appears -- appeals

1 clearly at least had that authority here, and
2 its ruling that it was required to vacate the
3 final judgment was plainly incorrect, and so we
4 would ask the Court to reverse.

5 Thank you.

6 CHIEF JUSTICE ROBERTS: Thank you,
7 counsel.

8 The case is submitted.

9 (Whereupon, at 11:23 a.m., the case
10 was submitted.)

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